How East Detroit Is Governed

Reading 2 of 4: Authority, independent agencies and the real models behind them

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Nothing in this reading is an adopted charter. The platform, vendor, governance board and first service are all OPEN.

The problem being governed

East Detroit has 382,417 residents across twenty provisional neighborhoods. It combines city services and county duties in one fictional government, but many of the organizations residents deal with are independent of it. Growth brings new parcels, crowded schools, expensive housing, long commutes, income gaps, and demand for water, safety, recreation, permits and benefits.

Who holds authority

City-county departments must take part in the spec. Every other public body below can join a shared arrangement, join on its own conditions, or refuse; the last column says what is specific to each.

Table 1. Starting authority of each participant (SCENARIO)

Organization	Starting status	What this means in the exercise
City-county departments: planning, address and GIS, clerk, public health, the City Housing Division, human services, parks, police and 911, fire, finance, technology	Internal; must take part	Responsible for their own mandates and capacity. Can contest policy, financing, sequence, feasibility and methods.
Elected municipal and county leaders	Internal governing authority	Define decision rights, appropriations, accountability and how conflicts are settled.
State of Colorado agencies	External; control their own programs	Set program rules. The city cannot rewrite federal or state eligibility.
East Detroit Regional Housing Authority (EDRHA)	External; own board, regional constituency	Runs its own housing assistance and properties and decides who sees its records.
East Detroit Public Library District	External; own board and tax levy	Runs libraries, public computers and in-person help; decides whether to serve as a help point for city services.

Organization	Starting status	What this means in the exercise
East Detroit County Court	External; paid for by the city-county, judges decide independently	Controls its own case records.
East Detroit Health and Hospital Authority	External; board appointed by the mayor	Runs the public safety-net hospital. Patient records stay under medical privacy law.
East Detroit Health System	External	Runs the Level I trauma and teaching hospital, under the same privacy law.
Independent school districts and boards	External; separately governed	Shared data, enrollment workflows and school transportation require agreement.
RTD and any special transit authority	External	Service and fare arrangements require negotiation. A rail station in the scenario is not a data-sharing agreement.
East Detroit Water and Sewer Authority and any special districts	External, unless the class adopts a lawful way to absorb them	Have their own capital, water rights, rates, boundaries and service obligations.
Denver International Airport, KCFO operators, the FAA, surrounding cities and counties	External	Airport safety, routes, land ownership and boundaries limit city plans.
Residents, community organizations, workers, firms and vendors	Participants	Each can push, apply, sell or object, but none holds public authority.

What the city-county can and cannot require

A city-county can assign duties to its own departments through its charter, ordinances, administrative orders and approved budgets. That does not give it control over statewide eligibility rules, federal programs, independent school boards, private records, RTD, nearby municipalities or separately constituted authorities.

In practice:

- Internal departments must show up, make a proposal and account for carrying it out.
- External parties may decline and state their terms.
- If a department refuses to promise something unlawful or unfunded, record the issue and who can resolve it.
- Keep program appeals and legal review separate from technical administration.

Colorado: the legal setting

Colorado is East Detroit's legal setting. Where real law would require state action, write "fictional enabling rule needed" instead of claiming a local vote overrides state law.

Consolidated city and county

Broomfield is a real Colorado city that gained county status through a state constitutional amendment. The course assumes East Detroit was created by a similar fictional measure. That measure did not set up any particular board, software platform, elected structure or service priority. A consolidated government has fewer handoffs between city and county services, but it still cannot override external authorities.

County-administered benefits

Colorado's human services are state-supervised and county-administered. For programs such as food assistance, county offices deliver services under state and federal requirements. That gives East Detroit operating duties an ordinary city wouldn't have, but program policy, appeals, privacy rules and access to state systems still apply.

Intergovernmental cooperation

Colorado's constitution lets governments cooperate and contract to provide functions each is legally allowed to provide. Joint work is possible. Taking an independent agency's information without its consent is not.

A city-county court

Each Colorado county normally has a state-funded county court for smaller matters: evictions, small claims, civil cases up to $25,000, misdemeanors, traffic and protection orders. A state district court hears larger cases. Denver, a consolidated city and county like East Detroit, is the exception: Denver funds its county court, not the state, and Denver handles the appointment of its judges. The Colorado Constitution has a section specific to Denver's county judges (Article VI, §26).

SCENARIO: East Detroit has a county court on the Denver model, the East Detroit County Court. No other Colorado county has this arrangement, so it is a fictional enabling rule written into East Detroit's founding amendment. Felonies, family and probate cases go to an ordinary state district court. The city-county pays for the court, but its judges decide cases independently and it controls its own records, which is why this course treats it as an outside agency.

A public hospital authority

In 1997, Denver's public hospital left city government and became the Denver Health and Hospital Authority. Under Colorado law it is a political subdivision that is not an agency of the state or the city. The mayor appoints its eleven-member board, subject to city council confirmation.

SCENARIO: East Detroit has a public safety-net hospital on this model, the East Detroit Health and Hospital Authority. It is separate from the East Detroit Health System, the trauma and teaching hospital.

A library district

SCENARIO: East Detroit's libraries are run by the East Detroit Public Library District, an independent district with its own board and tax levy, not a city department. The Boulder Public Library District, in Table 2, is a real Colorado library district governed separately from its city.

The Denver airport precedent

Denver International Airport sits on land that used to be in Adams County. Legal authorization, elections and agreements governed the annexation and the economic arrangements that followed. East Detroit faces the same questions next to another jurisdiction's facility: who pays, who owns the land, who collects revenue and who approves new uses.

Michigan: comparisons, not law

Michigan arrangements are comparisons, not East Detroit law. One applies only if the class writes and adopts it, and says where Colorado law or the fictional enabling measure would allow it.

Charter-county functions

Michigan's Charter Counties Act lists functions a charter county may take on, including public health, police, fire, welfare, land use, recreation and utilities, and lets certain city functions move to the county by agreement. The class could adopt something similar as a fictional East Detroit charter clause. A transferred function still needs the affected government's consent where the law requires it.

Detroit's water arrangement

The Great Lakes Water Authority (GLWA) leases and operates Detroit's regional water and sewer facilities, while the Detroit Water and Sewerage Department keeps ownership of the city's local system and serves its customers. Owning the pipes, running the plants and serving customers can sit with different bodies. That split is one model for East Detroit's Water and Sewer Authority; any arrangement is OPEN.

Neighborhood technology stewards

Detroit's Equitable Internet Initiative built community-run networks maintained by trained Digital Stewards, giving residents paid roles and real responsibility instead of only surveys.

A student may propose mixed board appointments, an elected commission, a neighborhood council, a contracted regional operator or an internal city department. The decision record must say who holds each decision right and where that power comes from in the scenario.

Other institutional models

Table 2. Institutional models for comparison

Example (REAL REFERENCE)	How it actually works	East Detroit choice to debate (OPEN)
Colorado SIPA	A public authority oversees procurement and a contracted portal integrator	Central purchasing, vendor oversight, fees and political accountability
UTOPIA Fiber, Utah	Cities own a shared network; other providers serve customers on it	Whether a shared public asset can support competing services
KOMBIT, Denmark	Municipalities share procurement and product management	Population-based funding, portfolio priorities and the right to exit
X-tee, Estonia	Agencies exchange signed, authenticated, logged messages under agreements	Exchanging data for an approved purpose, versus shared records, versus a credential held by the resident
Athumi, Flanders	A public data company with a defined mandate and oversight	Whether to create a separate data-exchange operator, and what powers it would have
Boulder Public Library District	Local governments help select the board; the district governs itself	How to involve independent cultural or educational bodies
Detroit and GLWA	Public ownership with separate operation	Which body owns assets, which operates the service, and which answers to residents
Detroit Digital Stewards	Residents train for and help maintain local networks	How neighborhoods gain practical power and paid roles
LinkNYC, New York City	A public franchise with a private operator bound by financial and privacy obligations	Who can finance, audit, replace and shut down a contractor

These are precedents, not requirements. Rules change; check an institution's current terms before citing it.

Housing

Two separate housing institutions already exist. The City Housing Division (EDHD) is a city-county department. The East Detroit Regional Housing Authority (EDRHA) is independent and serves East Detroit

and nearby participating communities. The pair is modeled on Detroit (a city housing department beside an independent housing commission) and Portland (a city housing bureau beside Home Forward). A local rent-relief grant and a federal housing voucher are separate obligations, so not every overlap between them is waste. Reading 3 covers both cases; any agreement between EDHD and EDRHA is OPEN.

Rules for using Colorado and Michigan arrangements

1. **Colorado fact.** Start from real Colorado responsibilities and the fictional city-county's valid public powers.
2. **Michigan precedent.** Say what the comparison arrangement does and why it might work better.
3. **Fictional enabling change.** If an arrangement can't simply be adopted in Colorado, write the authorizing clause or the needed state partnership into the simulation. A student vote does not amend real Colorado law.
4. **Conflicts.** Record the options, the right or interest affected, who can settle the conflict and any outside party that must consent. Pick a rule and say why; don't assume the "better" state's rule wins automatically.
5. **Independent parties.** They can refuse, and a city-county resolution does not count as their consent.
6. **Federal and state program boundaries.** City policy can't get around them. Label any fictional waiver or pilot as fictional and have the right simulated authority approve it.

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